



File No.: EXP202303273

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

From the actions taken by the Spanish Agency for Data Protection, and based on the following

FACTS

FIRST:

A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 28, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for a video surveillance camera installed in an establishment that is clearly oriented towards the public road, without prior administrative authorization for this, and without being properly signposted with the required surveillance area signs. Images of the camera's location are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on March 29, 2023, as evidenced by the acknowledgment of receipt in the file.

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No response has been received to this forwarding letter.

THIRD: On May 28, 2023, after three months had passed since the filing of the complaint, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 13, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement was carried out in accordance with the rules established in the LPACAP, being published in the BOE on August 16, 2023, after two unsuccessful attempts at postal notification due to the respondent being absent.

After the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise pronouncement about the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the

respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is established that the respondent is responsible for a video surveillance camera installed in an establishment that is clearly oriented towards the public road, without prior administrative authorization for this.

SECOND: It is also established that there is no informational device regarding the installation of video surveillance cameras.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, thus their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone carrying out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal

data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. If the monitored space has several entrances, such a sign indicating the video-monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on them.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

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In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public thoroughfare unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely walking through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Physical or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- Images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the treatments of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the responsible party regarding the...

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processing of personal data that is carried out, and where applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

V

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and with the provisions of Article 76 of the LOPDGDD, regarding section k) of the aforementioned Article 83.2 GDPR.

For all of the above, it is considered that the corresponding sanction is an administrative fine of 300 euros for each of the infractions, which totals 600 euros.

VI

Article 58.2 d) of the GDPR establishes that each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The responding party is instructed to, within 30 days from the receipt of this resolution:

- Provide evidence of having placed the information device in the monitored areas or to complete the information provided therein (at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence that the information referred to in Articles 13 and 14 of the GDPR is available to the affected parties.
- Provide evidence of having removed the camera or video camera system from the current location or to have reoriented it, in such a way that the viewing of the images observed demonstrates that it does not capture:
 - common areas of the dwelling.
 - the adjoining dwelling.
 - the public road.

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It is warned that failure to comply with the requirements of this agency may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for scaling the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infraction of Article 5.1.c) of the GDPR and an infraction of Article 13 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 300.00 euros each, totaling 600.00 (SIX HUNDRED) euros.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days, provide evidence of having complied with:

- the placement of the information device in the monitored areas or to complete the information provided therein (at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- maintaining the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.
- the removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed demonstrates that it does not capture:
 - common areas of the dwelling.
 - the adjoining dwelling.
 - the public road.

SECOND: NOTIFY this resolution to B.B.B.

THIRD: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the

voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the number of

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procedure outlined in the heading of this document, in the restricted account no.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, it will proceed to collection in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next immediate business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next immediate business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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